

Tentative Rulings for Department 501

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Tentative Ruling

Re: **A. M. v. Fresno Unified School District**
Superior Court Case No. 22CECG02656

Hearing Date: September 15, 2026 (Dept. 501)

Motion: Defendant Fresno Unified School District's Motion for Summary Judgment and/or Summary Adjudication

Tentative Ruling:

To deny defendant Fresno Unified School District's motion for summary judgment and/or summary adjudication.

Explanation:

This case arises from the alleged sexual assault of plaintiff A.M. ("plaintiff"), then a student within Fresno Unified School District ("FUSD"), by defendant Maximo Parayno III ("Parayno" or "defendant"), then employed by FUSD and assigned to Vinland Elementary School ("Vinland"), a school operated by FUSD. (Undisputed Material Fact ("UMF") No. 1.) Plaintiff alleges Parayno sexually assaulted her once in 2002, while Parayno and plaintiff were in Parayno's classroom. (UMF No. 2.)

Plaintiff's First Amended Complaint ("FAC") alleges four causes action: (1) Negligence (against FUSD); (2) Negligence (against DOES 2 through 25); (3) Negligent Hiring, Retention, and Supervision (against FUSD); and (4) Negligent Hiring, Retention, and Supervision (against DOES 2 through 25). FUSD now moves the court for summary judgment or, alternatively, summary adjudication, on grounds no triable issues of material facts exist as to the two negligence causes of action against FUSD.

A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if he or she shows one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Code Civ. Proc., §437c, subd. (p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (*Ibid.*) A cause of action has no merit if either (1) one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded; or (2) a defendant establishes an affirmative defense to that cause of action. (Code Civ. Proc., § 437c, subd.(o).)

FUSD's Objections

Objections 15, 16, 18, 19 20 - Overruled

FUSD objects to and moves to strike various documents that comprise Exhibit F to plaintiff's counsel's declaration:

- Objection 15 - Exhibit F at Bates Nos. FUSD.AM.000070-000071 (pages 309-310 of the Felton Decl.) referred to as "FUSD Letter to Parayno Produced by Defendant" in support of PAMF Nos. 15 and 18.
- Objection 16 - Exhibit F at Bates No. FUSD.AM.000072 (page 311 of the Felton Decl.) referred to as "Email to Parayno Produced by Defendant" in support of PAMF No. 15.
- Objection 18 - Exhibit F at Bates No. FUSD.AM.000425 (page 385 of the Felton Decl.) referred to as "Letter on Impermissible Field Trips Produced by Defendant" in support of PAMF No. 15.
- Objection 19 - Exhibit F at Bates Nos. FUSD.AM.000090-000102 (pages 316-329 of the Felton Decl.) referred to as "FUSD Resolution Formulating Charges Produced by Defendant" in support of PAMF No. 15.
- Objection 20 - Exhibit F at Bates Nos. FUSD.AM.000348-000349 (pages 383-384 of the Felton Decl.) referred to as "Letter on Impermissible Field Trips Produced by Defendant" in support of PAMF No. 20.

FUSD argues that each of the proffered documents are inadmissible hearsay and multiple hearsay (Evid. Code., §§ 1200, 1201), and are unauthenticated. (Evidence Code §§ 1400, 1401.)

Plaintiff contends that the documents in Exhibit F are not properly authenticated, citing *Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 855, ("*Serri*"). Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law." (Evid. Code, § 1400.) First, these documents were produced by FUSD and purport to have been prepared by FUSD or its agents. (Felton Decl., ¶18.) Second, *Serri* is inapplicable.

The *Serri* appellate court excluded "dozens" of exhibits consisting of "handwritten notes by unidentified authors," agreeing with defendants that " '[n]ot every document that comes out of an opposing party's files is automatically admissible even against that party, much less as to all others'" (*Serri, supra*, 226 Cal.App.4th at p. 855.) However, the limits of *Serri*'s holding is demonstrated in *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323 ("*Hooked Media*");

Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law." (Evid. Code, § 1400.) Relying on *Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 855, 172 Cal.Rptr.3d 732, *Hooked* asserts that Apple's evidence was not adequately authenticated by a sworn statement from Apple's counsel that the documents were produced by Hooked and third parties during discovery. But *Serri* did not hold that an attorney's declaration that documents were obtained through discovery can never suffice for authentication. Rather, *Serri* found such a declaration

inadequate because the documents at issue were unsigned handwritten notes, and there was no evidence indicating they were written by the person the proponent claimed. (*Ibid.*) The documents here are much different. They are mostly e-mails bearing clear indicia that they are what Apple claims they are.

Hooked Media, supra, 55 Cal.App.5th at 337–338.

As in *Hooked Media*, the documents challenged by FUSD are clearly what they purport to be: letters and emails by FUSD's own personnel pertaining to defendant Parayno. As such, they have been properly authenticated by plaintiff's counsel's declaration.

Furthermore, hearsay is “evidence of a statement that was made other than by a witness while testifying at the hearing and that is offered to prove the truth of the matter stated.” (Evid. Code, § 1200, subd. (a).) A statement is not hearsay if offered for a purpose other than to prove the truth of the matter, i.e., to show only that the statement was made or to show a certain effect on the hearer or reader. (See *Taylor v. Centennial Bowl, Inc.* (1966) 65 Cal.2d 114, 125 [Bowling alley's request for police assistance admissible to show its knowledge of violence on premises].)

Here, the challenged evidence shows that FUSD had notice of prior allegations against Parayno, had placed Parayno under a number of restrictions as a result, and that Parayno did not comply with these directives. Specifically, FUSD was on notice that Parayno was reported to have been alone with a female student in his classroom, and continued to take students off campus.

FUSD Failed to Meet its Burden with Respect to Negligence

Under Civil Code section 815, public entity tort liability is exclusively statutory. Plaintiff seeks to hold FUSD liable pursuant to Civil Code section 815.2, which provides that “[a] public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.”

It is undisputed that FUSD owed plaintiff a duty of care. FUSD's argument is that it met its standard of care by adequately providing the requisite supervision of Parayno:

Here, because Parayno's alleged abuse of Plaintiff is outside source and scope of employment as a matter of law (see *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438), **FUSD's liability in this case, if any, must arise from the negligent hiring, training, supervising and/or retention of Parayno.** (See *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 879 [“a public school district may be vicariously liable under section 815.2 for the negligence of administrators or

supervisors in hiring, supervising and retaining a school employee who sexually harasses and abuses a student."].)

(Moving Papers, pg. 2:19-25 (emphasis added); see also UMF Nos. 6-9)

However, plaintiff's complaint further alleges in the first cause of action for general negligence that FUSD was negligent, not just in the supervision of Parayno, but in placing plaintiff with Parayno:

SCHOOL was negligent in the placement and supervision of Plaintiff while at SCHOOL, and in the failure to keep Plaintiff safe.

(Milton Decl., Exhibit A, ¶63.)

Here, FUSD never negated the contention it acted negligently by placing plaintiff with Parayno. Accordingly, motion for summary adjudication is denied. A defendant who seeks a summary judgment must define all of the theories of liability alleged in the complaint and challenge each factually; if the defendant fails to do so, he or she does not carry the initial burden of showing the nonexistence of a triable issue of material fact. (*Jameson v. Desta* (2013) 215 Cal.App.4th 1144, 1165; *Lopez v. Superior Court* (1996) 45 Cal.App.4th 705, 714.)

FUSD Failed to Meet its Burden with Respect to Negligent Hiring, Retention, and Supervision

Courts have found schools owe a greater duty to protect students than the typical duty of care. "[A] school district and its employees have a special relationship with the district's pupils, a relationship arising from the mandatory character of school attendance and the comprehensive control over students exercised by school personnel, 'analogous in many ways to the relationship between parents and their children.' " (C.A. v. *William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 869.)

"[S]chool authorities, by the nature of their special relationship with their students, have 'a duty to supervise at all times the conduct of the children on the school grounds and to enforce those rules and regulations necessary to their protection,' which 'includes the duty to use reasonable measures to protect students from foreseeable injury at the hands of third parties.' " (*D.Z. v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 210, 223.) This principle has been applied in cases of employees' alleged negligence resulting in injury to a student . . . resulting from a teacher's sexual assault. (C.A. v. *William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 870.) A school district and its employees owe a duty to protect students from a teacher's sexual abuse when they knew or should have known that the teacher posed a reasonably foreseeable risk of harm to students under his supervision. (*Id.* at 870-71.)

"Once a court determines a defendant owes a duty to a plaintiff, 'the remaining liability questions—breach as well as factual and legal causation—are usually questions for the jury.'" (*Doe v. Lawndale Elementary School Dist.* (2021) 72 Cal.App.5th 113, 126. ("Lawndale.") "For example, a defendant's arguments 'about specific measures it has

already taken . . . concern[] whether defendant in fact took reasonable care, a question of breach usually for the jury.' [Citations.] Similarly, 'argument[s] about specific foreseeability'—such as whether [a teacher's] sexual abuse of [a student] was foreseeable under the circumstances—'would be relevant to whether plaintiff had established proximate cause, also usually a question for the jury.' " (*Id.* at 126-27.)

A cause of action for negligent hiring, supervision, or retention of an employee requires the following elements: (1) the employer hired employee; (2) the employee was/became unfit or incompetent to perform the work for which he was hired; (3) the employer knew or should have known the employee was/became unfit or incompetent and that this unfitness or incompetence created a particular risk to others; (4) the employee's unfitness or incompetence harmed plaintiff; and (5) the employer's negligence in hiring/supervising/ retaining the employee was a substantial factor in causing plaintiff's harm. (CACI No. 426; see also *Federico v. Superior Court* (1997) 59 Cal.App.4th 1207, 1213-1214.) To establish a cause of action for negligent hiring, retention, or supervision, a plaintiff must show that the employer knew or should have known that hiring or retaining the employee created a particular risk or hazard and that particular harm occurs. (See *Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902; *Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054.) Negligent hiring, retention, or supervision is a form of direct negligence. (*Ibid.*)

FUSD argues it met the standard of care with respect to supervising Parayno. FUSD first argues that it took no adverse action against Parayno's teaching credentials after the Fresno County District Attorney declined to criminally charge Parayno for a case involving a former Vinland Elementary School student name Sarah Ochoa ("Ochoa"), who accused Parayno of sexually assaulting her in 1997-1998, three years before Parayno's alleged abuse of plaintiff, and the California Commission on Teacher Credentialing ("CTC") determined Ochoa's allegations were unfounded. Second, according to Dr. Zimring, under the Child Abuse and Neglect Reporting Act ("CANRA"), once Ochoa's allegations against Parayno were reported to law enforcement, FUSD's obligations with respect to supervising and retaining Parayno were to cooperate and assist with the investigations of the Fresno Police Department and CTC, and not to conduct an independent investigation as to whether Ms. Ochoa's claims were founded. (Milton Decl., Tab C, Zimring Decl., ¶¶ 2.c., 2.d; see also FUSD's Moving Papers, pg. 5:4-18, citing *Lawndale, supra*, 72 Cal.App.5th at 140-141.) Further, during his employment with FUSD, Parayno was evaluated five times and received formal evaluations twice a year, which is consistent with expectations of evaluating teachers during the relevant timeframe. (Milton Decl., Tab C, Zimring Decl. at ¶ 2.e.) Parayno's evaluations included FUSD personnel coming into Parayno's classroom, witnessing Parayno's work, documenting their observations, and providing feedback. (*Ibid.*) Finally, FUSD asserts that even though the Ochoa allegations were determined to be unfounded, the Vinland Elementary School administration was active in supervising Parayno following the Ochoa allegations, even to the point of admonishing Parayno to avoid even the appearance of impropriety by strict compliance with school rules and policies. (Milton Decl., Tab C, Zimring Decl., ¶¶ 2.f., 2.g.)

FUSD fails to meet its burden that there is no triable issue of fact with respect to the cause of action pertaining to negligent hiring, retention, and supervision.

First, FUSD's reliance on *Lawndale* with respect to FUSD's argument it met its standard of care by cooperating with the Fresno Police Department and CTC by not conducting an independent investigation is distinguishable. School employees are mandatory reporters who must report if they have knowledge of or reasonably suspect child abuse pursuant to the Child Abuse and Neglect Reporting Act (CANRA). (Pen. Code, § 11166, subd. (a).) The relevant portion of *Lawndale* that FUSD cites pertains to the court of appeal ruling that the trial court did not err in granting summary adjudication on Doe's cause of action for breach of the mandatory duty to report suspected child abuse, which pertains to a separate cause of action. The court in *Lawndale* found that the employees supervising the alleged perpetrator had acted appropriately for purposes of CANRA where they did not see any red flags:

The District employees who supervised Farr or observed him with Doe all testified that they never saw any interactions between Doe and Farr that caused them to suspect Farr was behaving inappropriately and that they did not learn Farr had sexually abused Doe until his arrest. The trial court ruled this evidence met the District's burden to show Doe could not prove the District breached a mandatory duty to report. Doe contends that, because CANRA provides for an objective, rather than a subjective, standard for mandated reporters, there was a triable issue of fact regarding whether District employees had a reasonable suspicion of abuse.

Lawndale, *supra*, (2021) 72 Cal.App.5th at 138.

Even though FUSD's proffered citation to *Lawndale* is distinguishable, it can't be said that there were no red flags with respect to Parayno, and FUSD's own conduct contradicts its claims that supervision of Parayno was adequate. For instance, Navarette recounted seeing a female student alone in Parayno's classroom after he had been told not to do this. She admonished him again saying: "didn't you learn anything, I sure did":

Navarette reminded S-Parayno on several occasions after the investigation not to have students in the classroom alone with him. Navarette remembers one incident when she was walking to the resource lab after school and saw several students leaving S-Parayno's classroom. Navarette went into S-Parayno's class and saw him there with one other female student who was correcting papers. Navarette couldn't remember the girl's name, but does remember [SIC] telling the girl she needed to go home. The girl told Navarette it was okay because her parents gave her permission to be there. Navarette again told the girl again to go home, at which time she left. Navarette and Larry Peterson counseled S-Parayno after this incident and remembers telling him something similar to, "didn't you learn anything, I sure did." Navarette also wrote S-Parayno a disciplinary letter for allowing the student to be in the classroom alone with him.

(Milton Decl., Tab B, Exhibit D, Navarette Depo. at 25:13-30:13 and pages 12-13 of Exhibit 1.)

Even assuming arguing FUSD did meet its preliminary burden of establishing that it adequately hired, supervised, and retained Parayno, plaintiff's Additional Material Facts Nos.15 and 18 prevent the court from entering judgment in FUSD's favor on the third cause of action. These AMFs establish FUSD's administration issued several "write-ups" to Parayno for using inappropriate language in the classroom, for taking students off campus on field trips without written permission, and for Parayno repeatedly being alone in a classroom with a student after school. As such, it cannot be said that the questions as to whether FUSD acted reasonably with regard to Parayno and/or whether the harm to plaintiff was foreseeable should be resolved as a matter of law. (*Lawndale, supra*, 72 Cal.App.5th at p. 126.)

Furthermore, FUSD's argument pertaining to Labor Code section 432.7 and its failure to act based solely on the Ochoa allegations are inapplicable, given the so-called admonishments Parayno received with respect to his pattern of behavior that did not necessarily involve Ochoa, and FUSD's general duty to protect other children, such as plaintiff.

Accordingly, FUSD's motion for summary judgment and/or adjudication is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 09/14/26
(Judge's initials) (Date)